

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 26, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: COUNCIL PRESIDENT – Dr. Mark Rinne; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dicky Shanor and Jeff White. Absent: Mayor Marian J. Orr. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. In the absence of Mayor Orr, Council President Rinne chaired the meeting. [City Clerk’s note: As chair, President Rinne exercised his option, as entitled by state statute, to not cast a vote on agenda items]. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”, and President Rinne who did not vote. For informational purposes, President Rinne advised those present that the Reed Avenue Rail Corridor Master Plan resolution, included on the Consent Agenda, was being referred to Public Services Committee which would meet on April 3, 2018 at Noon in Room 104.

[CA] Minutes from Regular Meeting of the Governing Body on March 12, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present with the exception of President Rinne who did not vote.

President Rinne opened a public hearing for a retail liquor license transfer of location application filed with the City Clerk’s Office for Steamboat’s, LLC d/b/a Steamboat’s Wyoming Steak and Smoke House, from 1947 Dell Range Blvd. to 115 E. 17th St., Cheyenne, Wyoming. Scott Rupe, Steamboat’s Wyoming Steak and Smoke House, explained they are in negotiations with the property owner relative to the lease agreement for the restaurant’s current location, and indicated, at this time, they would like to move forward with the process to transfer the license location. Upon inquiry, Mr. Rupe advised notification would be provided prior to the April 9th City Council meeting if the transfer of location application would be withdrawn. There being no further comments or input and purpose of the hearing having been met, President Rinne closed the hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending Section 1.16.050, Off-Site improvements – Requirements, of Chapter 1.16, Annexation and Infrastructure Improvements, of Title 1, General

Provisions, of the code of the City of Cheyenne, Wyoming. Mr. Johnson moved to approve on third and final reading, seconded by Mr. Case. Reporting for Public Services Committee, Mr. Roybal stated the recommendation of the committee is to approve on third and final reading. Upon inquiry, Ben Rowland, Assistant City Attorney, explained the process that would be utilized if a property were sold after a deposit had been made by the initial property owner, and noted the parties involved may negotiate between themselves relative to the deposit amount. Comment was made regarding the refund process; infrastructure improvements and lack of implementation, and annexation of county pockets. Upon inquiry, Mr. Rowland verified the ordinance change applies only to properties which have been annexed into the City involving instances where deposits have been made and infrastructure has not been put in. Motion carried. Voting “yes” all members of the governing body present with the exception of President Rinne who did not vote. (#4221)

ORDINANCE – 1st READING – Amending Chapter 8.56, Noise Control, Section 8.56.060, Permit for relief from designated levels, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Mountain View Homes Subdivision, 2nd Filing, a replat of Tracts 3 and 4 of Mountain View Homes Subdivision being situated in a portion of the SW¼ Section 12, Township 13 North, Range 67 West, of the Sixth Principal Meridian, Laramie County, Wyoming (located west of and adjacent to Southwest Drive, north of West College Drive). Motion (per Consent Agenda) carried. (#5920)

RESOLUTION – Creating the Municipal Court Building Process Review Committee. As sponsor of the resolution, Mr. Laybourn requested the item be withdrawn from the agenda, noting he had comments he would like to make. President Rinne advised comment could be made under other business. Upon query and hearing no objection from City Council members, President Rinne stated the item was withdrawn from the agenda.

[CA] RESOLUTION – Amending Resolution No. 5808 by appointing the Mayor of the City of Cheyenne to serve on the Advisory Board of the participating municipalities of the Laramie State Small Business Credit Initiative (“SSBCI”) Consortium – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Adopting the revised City of Cheyenne, Wyoming, Investment Policy and Portfolio Guidelines, February 26, 2018 – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2018 budget of the City of Cheyenne according to the provisions of W.S. §§16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Acknowledging receipt of the Reed Avenue Rail Corridor Master Plan – referred to Public Services Committee. (Sponsors – Mr. Laybourn, Mr. Roybal and Mr. White)

[CA] Juvenile Housing Agreement between the City of Cheyenne and Laramie County for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex. Motion (per Consent Agenda) carried. (#6806)

[CA] Agreement between the City of Cheyenne, Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center. Motion (per Consent Agenda) carried. (#6807)

[CA] 2018–2019 Collective Labor Agreement between the City of Cheyenne and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters. Motion (per Consent Agenda) carried. (#6808)

[CA] Agreement between the City of Cheyenne and Josh Cossitt to provide tennis services and instruction at City-owned tennis facilities (revenue to City). Motion (per Consent Agenda) carried (revenue to the City \$600.00). (#6809)

[CA] Agreement between the City of Cheyenne and HollyFrontier Cheyenne Refining LLC for designation of the title of sponsorship of SuperDay and the Tour de Prairie events. Motion (per Consent Agenda) carried (revenue to the City \$25,000.00). (#6810)

[CA] Memorandum of Understanding between the City of Cheyenne, and Laramie County School District No. 1 to provide transportation service for the Recreation Division "REC Camp Program". Motion (per Consent Agenda) carried. (#6811)

[CA] Agreement by and between the City of Cheyenne, Cheyenne Civic Center, and the International Alliance of Theatrical Stage Employees, Moving Picture Technicians, Artists and Allied Crafts of the United States, Its Territories and Canada (IATSE), Local 229, for stagehand labor – referred to Finance Committee.

[CA] Consideration of Bid #E-14-18 for furnishing one new 2017-2018 low ground pressure/waste handling dozer for the City of Cheyenne Landfill (Solid Waste management). Motion (per Consent Agenda) carried (accepted bid submitted by Power Equipment, Casper, WY, in an amount not to exceed \$353,117.00).

[CA] Consideration of Bid #E-19-18 for furnishing 95-gallon and 65-gallon automated refuse carts for the City of Cheyenne Sanitation Division (Solid Waste management). Motion (per Consent Agenda) carried (accepted bid submitted by IPL Inc., Forsyth, GA, in an amount not to exceed \$72,172.00).

[CA] Consideration of Bid #E-22-18 for the City's annual purchase of "Aggregates" (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-23-18 for the City's annual purchase of "Hot Mix, Tack Oil and Cold Mix" (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration to purchase Motorola digital portable radios for the Cheyenne Fire and Rescue Department from Wireless Advanced Communications, Evans, Colorado (Homeland Security funds). Motion (per Consent Agenda) carried (amount not to exceed \$38,703.68).

[CA] Consideration to purchase a replacement engine for a loader for Street and Alley Division from Tri-State Truck & Equipment, Casper, Wyoming. Motion (per Consent Agenda) carried (amount not to exceed \$47,129.31).

Announcement was made of a Public Hearing to be held April 9, 2018, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for the City of Cheyenne's Annual Action Plan Fiscal Year 2018-2019 prepared by the Cheyenne Housing and Community Development Office.

Announcement was made of a Public Hearing to be held April 9, 2018, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for Lot 14, Block 5, Homestead Addition, First Filing Replat, Laramie County, Wyoming (located south of Homestead Avenue, north of the Cheyenne Greenway).

Announcement was made of a Public Hearing to be held April 9, 2018, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N, R.66W., of the 6th P.M., Laramie County, Wyoming (located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road).

Under other business:

Commenting on the Municipal Court building project and the selected Carey Building site were: Ed Melko, Astrid, Lois Phillips and Jim Byrd, State Representative (legislature). Comments included: Building design to include a second floor "shell-out" space; utilizing additional funds, if needed, for the project from other projects; designing building to be similar in physical appearance as the historic block, and proposed location for the project being an inappropriate choice and not contributing to revitalizing downtown.

Mr. Laybourn commented on the resolution withdrawn from the agenda earlier in the meeting and his reasons for proposing the resolution to provide for a review committee for the Municipal Court project. He expressed concerns with revitalizing downtown; use of 6th Penny funds for demolition, remediation of environmental issues and design costs, and lack of current property owner financial contribution toward property improvements.

Mr. Johnson requested a memo of clarification from City Attorney staff regarding a Wyoming Supreme Court ruling related to firefighter union contract negotiations. Sylvia Hackl, City Attorney, explained the ruling requires there be a quorum of the governing body present during negotiations, however, a Labor Management Committee was created last year as part of the approved current contract which provides for the committee to meet throughout the year and bring

items before the governing body. She stated negotiations were in complete compliance with the law and that she would prepare and provide a memo.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:43 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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